

		proposed cross-complaint alleges that the proposed cross-defendants have a contractual duty to maintain the subject property pursuant to the lease between the parties. Defendant argues that the cross-complaint will allow a complete determination of this controversy in one action and permit a fair trial of the issues. Code of Civil Procedure section 428.10(b) provides that a defendant may file a cross-complaint if the cause of action asserted: “(1) arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause brought against him or (2) asserts a claim, right, or interest in the property or controversy which is the subject of the cause brought against him.” If such a cross-complaint is not filed at the same time as the defendant’s answer or before the court sets the first trial date, leave to file is required. (Id. § 428.50(a)-(b).) Leave to file may be granted “in the interest of justice at any time during the course of the action.” (Id. § 428.50(c).) The proposed cross-complaint would not add any new parties to the action and granting leave to amend would not pose any prejudice to any party. Thus, the unopposed Motion for Leave to File Cross-Complaint is GRANTED. Defendant is ordered to file and serve the cross-complaint within 10 days. Moving party to give notice.
105	Izaguirre vs. Nissan North America, Inc, 2024-01429431	Motions to be Relieved as Counsel – GRANTED Prestige Legal Solutions, PC (“Moving Attorney”) moves to be relieved as counsel of record for (1) Plaintiff Gregorio Izaguirre and (2) Plaintiff Marubia Hermoso Ramirez. The motions are unopposed. Moving Attorney has stated a basis for permissive withdrawal under Rules of Professional Conduct, Rule 1.16. The motions satisfy the notice, declaration, and proposed order requirements of Cal. Rules of Court, Rule 3.1362. The motions are GRANTED. The orders relieving counsel will be effective upon counsel filing proof of service of a copy of the signed order on the client and on

		all parties that have appeared in the case. (Cal. Rules of Court, Rule 3.1362(e).) Moving Attorney to give notice.
106	Palos vs. La Habra Unified School District, 2025-01511238	Motion to Strike Portions of Complaint – DENIED Defendant, La Habra City School District (“Defendant”), moves for an order striking all references to attorney’s fees and costs at paragraph 78, page 15, lines 1 through 3 of the Second Amended Complaint of Plaintiff, Ian Palos, a minor, by and through his Guardian ad Litem, Salem Palos (“Plaintiff”). The motion to strike is DENIED. Under Code of Civil Procedure section 436, the court may, upon a motion or at any time in its discretion, and upon terms it deems proper, strike out “...any irrelevant, false, or improper matter inserted in any pleading” or “all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Code Civ. Proc. § 436(a)-(b); See Quiroz v. Seventh Ave. Ctr. (2006) 140 Cal.App.4th 1256, 1281.) Irrelevant matters include allegations not essential to a claim or defense, allegations not pertinent to nor supported by a sufficient claim or defense, or requesting relief not supported by the allegations of the complaint or cross-complaint. (Code Civ. Proc. § 431.10(b).) Defendant claims the allegations of the second amended complaint seeking attorney fees and costs are not supported by the claims for relief, and are therefore irrelevant. Paragraph 78 of the ninth cause of action for violation of Government Code section 11135 states: “As a proximate result of the acts and omissions of Defendants, and each of them, as described herein, Plaintiff is entitled to Plaintiff’s reasonable attorney’s fees, Plaintiff’s costs of suit incurred herein, and such other and further relief as the Court deems just and proper.”